



FEMA

July 31, 2024

SENT VIA EMAIL

Rayana Gonzales
Deputy Commissioner of Disaster Recovery Programs
Alternate Governor's Authorized Representative
New York State Division of Homeland Security
and Emergency Services
1220 Washington Avenue
Building 7A, 4th Floor
Albany, New York 12242

James Eves
Mayor, Village of Dexter
P.O. Box 62
509 Liberty Street
Dexter, New York 13634

Re: Second Appeal – Village of Dexter, PA ID: 045-20500-00, FEMA-3589-EM-NY,
Grants Manager Project 711626, Snow Assistance

Dear Rayana Gonzales and James Eves:

This is in response to the New York State Division of Homeland Security and Emergency Services' (Recipient) letter dated June 14, 2024, which transmitted the referenced second appeal on behalf of the Village of Dexter (Applicant). The Applicant is appealing the U.S. Department of Homeland Security's Federal Emergency Management Agency's (FEMA) denial of funding in the amount of \$12,149.89 for snow removal activities.

As explained in the enclosed analysis, I have determined that snow assistance is ineligible for Public Assistance funding as it was not specifically authorized in this emergency declaration. Additionally, the Applicant did not demonstrate that limited snow-related activities were necessary to complete otherwise eligible work. Therefore, this appeal is denied.

This determination is the final decision on this matter pursuant to 44 C.F.R. § 206.206, **Appeals**.

Sincerely,

A handwritten signature in blue ink that reads "Robert Pesapane".

Robert Pesapane
Division Director
Public Assistance Division

Enclosure

cc: David Warrington
FEMA Region 2
Regional Administrator

SECOND APPEAL ANALYSIS
Village of Dexter, PA ID: 045-20500-00
FEMA-3589-EM-NY, Grants Manager Project 711626
Snow Assistance

Background

From November 18 to 21, 2022, a severe winter storm bringing lake-effect snow affected the state of New York, which resulted in an emergency declaration for 11 counties, including Jefferson County, where the Village of Dexter (Applicant) is located.¹ The emergency declaration authorized Public Assistance (PA) for Category B emergency protective measures, but did not specifically authorize snow assistance. The Applicant requested \$12,149.89 in PA reimbursement for its snow-related activities (plowing, salting, sanding, and snow blowing) and provided documentation for its force account labor overtime, equipment, and materials. FEMA prepared Grants Manager Project 711626 to document the Applicant's request. FEMA issued a Determination Memorandum on August 2, 2023, denying all requested funding. FEMA determined that the Applicant's claim was ineligible for PA funding because the emergency declaration did not authorize snow assistance and the Applicant did not demonstrate that snow removal was necessary to accomplish eligible emergency work in the immediate area, such as snow removal necessary to repair downed power lines.

First Appeal

On September 29, 2023, the Applicant appealed FEMA's denial of funding, seeking \$12,149.89. The Applicant described the circumstances and impact of the severe snowstorm, and asserted its snow removal efforts were directly related to emergency protective measures deemed necessary to eliminate or lessen immediate threats to lives, public health or safety. The Applicant explained that it was necessary to plow roads so first responders could respond to 911 calls and identified multiple hazards, such as abandoned vehicles on the roads, as well as stranded motorists. The Applicant stated that two shelters were set up to accommodate stranded individuals. The Applicant further claimed the storm resulted in record snowfall amounts and contended that snow removal was therefore eligible under FEMA's snow assistance policy.

In a letter dated November 8, 2023, the New York State Division of Homeland Security and Emergency Services (Recipient) forwarded the appeal to FEMA, supporting the Applicant's position. The Recipient stated that the President's disaster declaration included the term "snowstorm," which the Recipient interpreted to authorize snow assistance under FEMA's regulations and policy. According to the Recipient's interpretation, the requirement that snow removal must be limited to activities that are necessary to perform eligible emergency work unless otherwise specifically authorized only applies to "winter storm" declarations.

On February 14, 2024, the FEMA Region 2 Regional Administrator denied the appeal. FEMA found that snow assistance was not authorized under the emergency declaration. Regarding the Applicant's contention that snow removal was essential to respond to multiple hazards, including abandoned cars, FEMA stated that the claimed work was associated with normal snow-removal

¹ The President issued an emergency declaration on November 20, 2022.

activities, and was not incidental to otherwise eligible emergency protective measures under the declared emergency.

Second Appeal

In a letter dated April 15, 2024, the Applicant submitted a second appeal, seeking \$12,149.89.² The Applicant reiterates its first appeal arguments, expresses disagreement with FEMA's snow assistance policy, and contends its snow removal costs are eligible for PA funding as emergency protective measures. In a letter dated June 14, 2024, the Recipient forwarded the second appeal to FEMA, expressing its support.

Discussion

FEMA is authorized to provide assistance for emergency protective measures to save lives or to protect public health and safety.³ Snow-related activities, including snow removal, de-icing, salting, snow dumps, and sanding of roads and other eligible facilities, are only eligible emergency protective measures when a winter storm results in record or near-record snowfall.⁴ In such cases, FEMA authorizes snow assistance by county.⁵ For Severe Winter Storm Declarations that do not specifically authorize snow assistance, FEMA only provides PA funding for limited snow-related activities that are necessary to perform otherwise eligible work, such as snow removal necessary to repair downed power lines, while normal snow removal from roads (including salting and sanding) is ineligible.⁶ To be eligible, costs must be directly tied to the performance of eligible work and adequately documented.⁷

Here, notwithstanding the Applicant's assertions that the snowstorm produced record snowfall amounts, the President did not authorize snow assistance for any county in the emergency declaration. Additionally, although the Recipient claims that specific authorization for snow removal was unnecessary because this emergency declaration was for a snowstorm, the use of the term "snowstorm" in a declaration does not eliminate the requirement to authorize snow assistance by county.⁸ In this case, Jefferson County, where the Applicant is located, was not designated for snow assistance.

² Because the appeal deadline fell on a Sunday, the appeal submission on the first business day following the weekend (i.e., April 15, 2024), renders it timely. See FEMA Policy 104-22-0001, *FEMA Policy: Public Assistance Appeals and Arbitration*, at 3 (Feb. 24, 2022).

³ Robert T. Stafford Disaster Relief and Emergency Assistance (Stafford) Act § 502, Title 42, United States Code (U.S.C.) § 5192 (2018); Title 44 of the Code of Federal Regulations (C.F.R.) 206.225(a)(1) (2022); *Public Assistance Program and Policy Guide*, FP 104-009-2, at 51, 110 (June 1, 2020) [hereinafter *PAPPG*].

⁴ 44 C.F.R. § 206.227; *PAPPG*, at 238.

⁵ *PAPPG*, at 238. FEMA may also designate a county that does not receive a record or near-record snowfall but is contiguous to a county (generally referred to as a "core county") that does receive a record or near-record snowfall, for snow assistance if the county has current event snowfall that meets or exceeds the current event snowfall of the core county, to which it is contiguous. *Id.* at 238-239.

⁶ *Id.* at 135.

⁷ *Id.* at 65.

⁸ See, e.g., FEMA, 4322-DR-NY Initial Notice, www.fema.gov/disaster-federal-register-notice/initial-notice-1132 (July 11, 2017) (specifically authorizing snow assistance under the Public Assistance program for designated counties, despite using the same "severe winter storm and snowstorm" designation for the incident type as the emergency declaration for FEMA-3589-EM-NY).

Because the emergency declaration did not specifically authorize snow assistance, snow-related activities are only eligible if they are necessary to perform otherwise eligible work. This is an extremely limited exception.⁹ The Applicant contends its snow removal efforts are eligible emergency protective measures because the efforts were necessary to ensure that first responders could safely respond to emergency calls and, as examples, identifies multiple hazards that required snow removal efforts. However, the continuous townwide snow plowing of roads is consistent with normal snow removal operations and thus, ineligible. Furthermore, the Applicant did not provide documentation that demonstrates the snow-related activities were necessary to perform otherwise eligible work, such as snow removal necessary to repair downed power lines.¹⁰

Conclusion

Snow assistance is ineligible for PA funding as it was not specifically authorized in this emergency declaration. Additionally, the Applicant did not demonstrate that limited snow-related activities were necessary to complete otherwise eligible work. Therefore, this appeal is denied.

⁹ FEMA Second Appeal Analysis, *Terryville Fire District*, FEMA-4322-DR-NY, at 3 (Apr. 4, 2019).

¹⁰ FEMA Second Appeal Analysis, *Lubbock-Cooper Independent School District (ISD)*, FEMA-4255-DR-TX, at 2 (Aug. 4, 2017).